THE NATIONAL COMPANY LAW TRIBUNAL PRINCIPAL BENCH

AT NEW DELHI

COMPANY APPLICATION 264(PB)/2021

IN CP (CAA)-80/PB/2020

Under Rule 11 of NCLT Rules, 2016

Under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

Company Application In the matter of Scheme of Arrangement

CHEMESTER FOOD INDUSTRY PRIVATE LIMITED
(Applicant/ Demerged Company)

AND

ANNAPATI NURI FOODS PRIVATE LIMITED
(Non-Applicant/Resulting Company)

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order pronounced on: 21.02.2022

CORAM:

SH. BHASKARA PANTULA MOHAN
HON'BLE MEMBER (JUDICIAL)

SH. HEMANT KUMAR SARANGI
HON'BLE MEMBER (TECHNICAL)

For the Applicants : Mr. Rajiv Goel, Advocate.

Rules, 2016 in relation to the Scheme of Arrangement hereinafter referred to as the "SCHEME") proposed between the applicants.

2. By way of the present Application, the Applicant inter-alia sought for the following reliefs:

(a) Allow correction of Typo error in the PAN of the Demerged Company by replacing AAF CC 5417 M instead of AF CC 5417 M wherever appearing in the Scheme of Arrangement and other documents filed with this Hon'ble Tribunal.

(b) Take on record duly corrected Scheme of Arrangement as per Annexure:2 in replacement of the initial Scheme of Arrangement.

(c) Pass such other or further order(s) as the Hon'ble Tribunal may deem fit proper in the facts and circumstances of the present case.

I. In the present application the applicant is a Demerged Company, had filed 2nd motion petition bearing CP (CAA) 80 (PB) /2020 connected with the 1st motion Application bearing CA (CAA) 82 (PB)/2020 in connection with the Scheme of Arrangement of M/s Chemester Food Industry Pvt. Ltd. and M/s Annapati Nutri Foods Pvt Ltd.

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II. It is further submitted by the applicant that; the applicant has further noticed that in Clause 1.1 (vii) of the Scheme of Arrangement and in some other documents filed with the Company Application and the Company Petition before this Tribunal had wrongly mentioned the PAN of Demerged Company as PAN: AF CC 5417 instead of PAN: AAF CC 5417.

III. Further, the Applicant Company has carefully verified all the documents prepared in connection with the present Scheme of Arrangement. Thereafter with detailed scrutiny of the documents, it was found that the PAN of the Demerged Company has been correctly disclosed in the Notices of the Meetings under 1st and the 2nd motion petitions, which were served to the Income Tax Nodal Office at Delhi High Court etc.

IV. However, it is further clarified and confirmed by the applicant in this application that the aforementioned typographical error does not have any material impact on the Scheme of Arrangement.

V. After perusing the present application and the records of the application seeking rectification in Clause 1.1 (vii) in the Scheme of Arrangement where typographical error has been occurred in the PAN of Demerged Company as PAN: AF CC 5417 instead of PAN: AAF CC 5417 is hereby rectified.

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VI. After having heard the present rectification Application, this Bench is inclined to **Allow** the Prayer No. (a) and (b) prayed by the Applicant above as per section 420 of the Companies Act, 2013.

Therefore, the present (CA) 264(PB)/2020 in CP (CAA)-80/(PB)/2020 is hereby allowed and disposed of.

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HEMANT KUMAR SARANGI
MEMBER (TECHNICAL)

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BHASKARA PANTULA MOHAN
MEMBER (JUDICIAL)